YOUR FACTUAL RECORD FOR A GEORGIA Sec. 42-8-66 RETROACTIVE FIRST OFFENDER REQUEST

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

YOUR FACTUAL RECORD - GEORGIA RETROACTIVE FIRST OFFENDER, O.C.G.A. Sec. 42-8-66

THIS PAGE IS NOT FILED ANYWHERE. This pre-consent guidance stage identifies the candidate, explains the gate, and prepares the participant's factual record. A separate post-consent petition family exists in the controlling decision, but this guidance page is not that petition and does not authorize filing.

Name: Maria-Alejandra O'Shaughnessy-Whitfield
Date of birth: 1968-12-31
Mailing address: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
Telephone: (228) 555-0199 ext. 4417
Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

THE FACTS, IN THE COMMITTED RECORD'S OWN WORDS

[C1 - sentenced under first offender act] Were you actually sentenced under Georgia's First Offender Act in the original case? If you were, this is not your route.
.....
.....

[C2 - convicting court and county] Which court convicted you, in which county, and what is the case number?
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.....

[C3 - sentencing date] On what date were you sentenced?
.....
.....

[C4 - offense code section] Which O.C.G.A. Code section were you convicted under?
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.....

[C5 - first offender ever used] Had you ever been given First Offender treatment before this case?
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.....

[C6 - informed of eligibility] Were you told at the time that you could be sentenced as a first offender?
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.....

[C7 - historical category] Were you sentenced between 18 March 1968 and 31 October 1982 to incarceration of one year or less?

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[C8 - prosecuting office that handled the case] Was the case prosecuted by the District Attorney or by the Solicitor-General for that county?

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.....

[C9 - participant account] In your own words: what do you remember about the sentencing, and what were you told about your options?

.....

.....

DATE ..... SIGNATURE .....

(You sign and date your own record. Nothing on this page is signed or dated for you, and nothing on it is filed.)

WHAT THE GEORGIA Sec. 42-8-66 ROUTE IS, WHO RUNS IT, AND WHY NOTHING HERE IS FILED

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

GEORGIA RETROACTIVE FIRST OFFENDER TREATMENT, O.C.G.A. Sec. 42-8-66

WHAT THIS ROUTE IS, AND WHO RUNS IT

**NOTHING IN THIS PRE-CONSENT PACKET IS FILED, AND THIS STAGE GENERATES NO PETITION.** The committed guidance specification says nothing may be filed until advance written consent is obtained and that LegalEase does not obtain consent or file. The controlling decision separately recognizes a post-consent petition family; this guidance stage does not substitute for it.

What the route is: a petition for retroactive First Offender treatment, exoneration and discharge, which the committed route contract records can convert a conviction into a first-offender discharge.

What stands in front of it: the prosecuting attorney's ADVANCE WRITTEN CONSENT. The committed route contract records that consent is a condition that must exist BEFORE the individual files, and records that absence is never satisfaction - silence, refusal, an unanswered request and 'no known objection' each leave the precondition unmet.

What happens if it is granted: the committed guidance records that a grant converts the conviction into a first offender discharge which is not a conviction and makes the record restrictable and sealable, and that the court sends the order to the petitioner, the prosecuting attorney, GCIC and the Department of Driver Services, both of which must modify their records.
POST-ORDER IMPLEMENTATION TRACKING: If a qualifying retroactive First Offender order is entered on or after July 1, 2026, do not generate or file a second merits petition. Preserve the order's date and qualifying treatment as an implementation record, track the court's distribution to the petitioner, prosecuting attorney, GCIC and the Department of Driver Services, and verify the corresponding restriction and sealing updates with those custodians. If the order's date, qualification, distribution or record update is uncertain, stop self-help and take the order to counsel or a named Georgia expungement desk.
POST-ORDER CHECKLIST - complete only after a qualifying order exists:
[ ] Order identity: court, case number, signer, entry date, and a certified or court-issued copy retained.
[ ] Qualification: confirm the order is a retroactive First Offender order entered on or after July 1, 2026; if unclear, hand off for review.
[ ] Distribution record: record the date and method the court sent the order to the petitioner, prosecuting attorney, GCIC, and Department of Driver Services; do not represent an unconfirmed delivery as complete.
[ ] Verification record: obtain and retain each available custodian confirmation or updated record showing restriction and sealing implementation; unresolved discrepancies go to counsel or a Georgia expungement desk.
[ ] No second petition: this tracking checklist implements the qualifying order and does not create a new merits filing.

Who runs it: The prosecuting attorney first, then the convicting court. The committed record's own words: consent is sought from the prosecuting attorney before anything is filed; only after consent is obtained may the petition be filed in the convicting court.

WHAT YOU DO

- Fill in your factual record - the other page in this packet. The committed guidance records that preparing it is exactly what this route's product is.
- Obtain the sentencing record and plea paperwork from the original case. The committed guidance names the source: the clerk of the convicting court, asking for the sentencing record, the plea transcript or plea paperwork, and the final disposition.
- Take both to a lawyer or to one of the Georgia expungement desks the committed guidance names.
- Check your answers against the sentencing record and correct them if they disagree - the committed guidance records that check as a required step.

WHAT YOU DO NOT DO

- **Do not approach the prosecuting attorney for consent by yourself.** The committed guidance records that obtaining advance consent is negotiation with an opposing party and is outside self-help, and records the handoff as 'always, at the consent stage'.
- **Do not file anything before written consent exists.** The committed guidance records consent as a prerequisite; LegalEase does not obtain consent and does not file during this stage.
- **Do not treat silence as consent.** The committed route contract records that silence, refusal, an unanswered request and 'no known objection' each leave the precondition unmet.
- **Do not use this route if you were actually sentenced under the First Offender Act already.** The committed guidance's own first question says: if you were, this is not your route.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

**The repository establishes this one, and the answer is that there is no fee.** The committed guidance records it in the statute's own terms: "There shall be no filing fee charged for a petition filed pursuant to O.C.G.A. Sec. 42-8-66, per Sec. 42-8-66(h)." The committed route contract records the same thing - Sec. 42-8-66 imposes no elapsed wait and no filing fee. No fee waiver is needed, and the committed guidance says so: none needed, the statute prohibits a filing fee.

WHO MUST BE SERVED, AND WHO IS NOTIFIED

**Nothing is served before the consented filing stage.** The current guidance stage serves nothing because no filing occurs before written consent. After consent, service and court distribution follow the separate petition family's approved instructions; this page does not perform or certify service.

WHEN TO STOP AND GET HELP INSTEAD

- **Always, at the consent stage. Obtaining the prosecuting attorney's advance consent is negotiation with

an opposing party and is outside self-help.**
- the prosecuting attorney declines or does not respond - the committed guidance records that silence is not consent;
- the eligibility claim turns on what you were or were not told at the original sentencing, which the committed guidance records as requiring assessment of the sentencing record;
- the court requires a contested evidentiary hearing, which the committed route contract records as advocacy rather than document preparation;
- any immigration consequence is in play.

WHERE TO GO WHEN SELF-HELP STOPS

Where self-help stops, route the participant to a Georgia expungement desk: Georgia Justice Project, the Cobb County Second Chance Desk, the Henry County Records Restriction Desk, or Middle Georgia Justice "The Desk".